

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK-----X
ERIC JIMENEZ,

Index No.:

Plaintiff,

Plaintiff designates

New York County

- against -

as the place of trial

The basis of venue is

place of occurrence

THE CITY OF NEW YORK, THE POLICE
DEPARTMENT OF THE CITY OF NEW YORK,
DET. EDRIAN IRIZZARY, SHIELD #6201, DET. ROBERT **SUMMONS WITH NOTICE**
VILLANI, SHIELD #767, DET. CHRISTOPHER DEDE,
SHIELD #2119, DET. IAN SCHEINBLUM, AND VARIOUS
OTHER P.O.'s HEREIN NAMED JOHN DOES',

Defendants.
-----X

Plaintiff reside at
115 E. 119TH Street
New York, NY 10029

County of New York

To the above named Defendants:

You are hereby summoned to answer the complaint in this action and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance, on the Plaintiff Attorneys within 20 days after the service of this summons, exclusive of the day of service (or within 30 days after the service is complete if this summons is not personally delivered to you within the State of New York); and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded herein.

Dated: New York, New York
April 21, 2015

Defendants Address:

THE CITY OF NEW YORK
100 Church Street
New York, New York 10007

THE POLICE DEPARTMENT OF THE CITY OF NEW YORK
1 Police Plaza
New York, New York 10007

DET. EDRIAN IRIZZARY, SHIELD #6201
NARCOTICS DIVISION, OCCB
1 Police Plaza
New York, New York 10007

DET. ROBERT VILLANI, SHIELD #767
NARCOTICS DIVISION, OCCB
1 Police Plaza
New York, New York 10007

DET. CHRISTOPHER DEDE, SHIELD #2119
NARCOTICS DIVISION, OCCB
1 Police Plaza
New York, New York 10007

**DET. IAN SCHEINBUM
NARCOTICS DIVISION, OCCB
1 Police Plaza
New York, New York 10007**

Notice: The nature of this action is Negligence

The relief sought is personal injuries

**HARNICK & HARNICK, P.C.
Attorneys for Plaintiff
305 Broadway, Suite 602
New York, New York 10007**

Upon your failure to appear, judgment will be taken against you by default for the sum which exceeds the jurisdictional limits with interest from April 21, 2015 and the costs of this action.

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

-----X
ERIC JIMENEZ,

Index No:

Plaintiff,

VERIFIED COMPLAINT

-against-

THE CITY OF NEW YORK, THE POLICE
DEPARTMENT OF THE CITY OF NEW YORK,
DET. EDRIAN IRIZZARY, SHIELD #6201, DET. ROBERT
VILLANI, SHIELD #767, DET. CHRISTOPHER DEDE, SHIELD
#2119, DET. IAN SCHEINBLUM, AND VARIOUS OTHER P.O.'s
HEREIN NAMED JOHN DOES',

Defendants.
-----X

Plaintiff, ERIC JIMENEZ, complaining of the defendants, by HARNICK

& HARNICK, PC, his attorneys, alleges upon information and belief:

**FOR A FIRST SEPARATE AND DISTINCT CAUSE OF ACTION ON
BEHALF OF PLAINTIFF, ERIC JIMENEZ FOR FALSE
IMPRISONMENT**

FIRST: That at all the times mentioned herein, the defendant, The City of New York (hereinafter-referred to as "The City"), was and still is a domestic municipal corporation.

SECOND: That at all the times mentioned herein, the defendant, The Police Department of The City of New York, (hereinafter referred to as "The Police Department"), was and still is a domestic municipal corporation.

THIRD: That at all times mentioned herein, the defendant, The City owned, operated, maintained, and controlled the defendant, The Police Department.

FOURTH: That on MAY 5TH 2014, plaintiff duly filed with defendants, the City of New York a verified notice of claim setting forth the time and place where the accident, which is the subject of this lawsuit, occurred, the nature and extent of

the injuries, the damages sustained and the amount claimed.

FIFTH: That prior to the commencement of this action, on or about the 5TH day of May 2014 and within ninety days after plaintiff's cause of action arose, plaintiff caused to be served upon the defendants by its duly authorized officer, a verified Notice of Claim containing all of the data required by the statute in such cases made and provided.

SIXTH: More than thirty (30) days have elapsed since the presentation of said claim, and the defendant, The City of New York, has failed to adjust and/or dispose of the claim presented therein.

SEVENTH: That on February 5th 2015 50-H hearing was held.

EIGHTH: That this cause of action is commenced within one year and ninety days after same arose.

NINTH: That on or about February 4th 2013 the defendants, The City and The Police Department as well as their agents servants and or employees including but not limited to defendants, DET. EDRIAN IRIZZARY, DET ROBERT VILLANI, DET. IAN SCHEINBULUM, AND VARIOUS P.O'S HEREIN NAMED JOHN DOES,, and severally, acting within their scope of employment maliciously, wrongfully, unlawfully, improperly, and without probable cause and without any basis in law or fact, falsely swore a criminal complaint against the plaintiff, ERIC JIMIENEZ in order to effect the false forcible, and unlawful arrest and imprisonment of said plaintiff.

TENTH: That on or about 2/7/13, the defendants, DET. EDRIAN IRIZZARY, DET. ROBERT VILLANI, DET. IAN SCHEINBULUM, AND VARIOUS P.O'S HEREIN NAMED JOHN DOES, individually and severally and/or other agents servants and/ or employees of the defendants, The City and The Police Department wrongfully, unlawfully and without warrant or other legal process arrested the plaintiff, ERIC JIMENEZ against his will at the situs of the arrest and

at the 7th pct., well as Central Booking in the County, City and State of New York.

ELEVENTH: That on or about the 7th of February 2013, the plaintiff, ERIC JIMENEZ was forcibly restrained, imprisoned and detained by the defendants, The City, and The Police Department, as well as their agents, servants and or employees including but not limited to the defendant, DET. EDRIAN IRIZZARY, DETROBERT VILLANI, DET. IAN SCHEINBULUM, AND VARIOUS P.O'S HEREIN NAMED JOHN DOES, was subjected to being physically assaulted, forcibly restrained, held in a various holding cells for multiple hours and was in handcuffs at various times without having his Miranda rights read to him or informed of what he was being charged with, and was unlawfully charged with the following crimes under NYS penal law **220.03, 220.16, 215.40, 260.20, 221.05.**

TWELFTH: That on February 7th 2013 the plaintiff, ERIC JIMENEZ as a result of the wanton reckless and malicious actions of the defendants, The City, and The Police Department, as well as their agents servants and/ or employees including but not limited to the defendant DET. EDRIAN IRIZZARY, DET ROBERT VILLANI, DET. IAN SCHEINBULUM, AND VARIOUS P.O'S HEREIN NAMED JOHN DOES, the plaintiff, was then caused to taken in handcuffs and iron legs and only wearing his boxers from his apartment building and in front of his 12 year old brother to the 7th Precinct in an NYPD van. That upon arriving at the 7th precinct the plaintiff was subjected to being stripped searched, printed and having him mug shot taken. The plaintiff was then placed in a holding cell and eventually questioned by 2 detectives about matters not related to the forced entry into his home. That at approximately 2pm the client was taken to Bellevue Hospital because of his asthma, and was taken their in handcuffs. The plaintiff remained at Bellevue till approximately 7pm at which time he was transported in hand cuffs and leg irons in an NYPD van to Central Booking in Lower Manhattan. That upon arriving at Central Booking at approximately 8pm the plaintiff had his mug shots taken and was placed in a cell.

That at approximately 10am on February 8th 2013 the plaintiff was taken before a Judge and finally informed of the charges against him and bail was set at \$750. The plaintiff was then removed to the Manhattan Detention Center, aka "The Tombs" where he remained until February 14th 2013 That on February 14th 2013 the plaintiff was finally able to make bail and was released.

THIRTEENTH: That after her arraignment the plaintiff was caused to return to Criminal Court approximately 5 more times and on 2/10/14 the above said charges were dismissed by motion of the DA in Part A before Hon. L. Peterson and as such the plaintiff was caused due to the wanton, reckless and malicious actions of the defendants The City, and The Police Department, as well as their agents servants and/ or employees including but not limited to DET. EDRIAN IRIZZARY, DETROBERT VILLANI, DET. IAN SCHEINBULUM, AND VARIOUS P.O'S HEREIN NAMED JOHN DOESs to live in fear and with mental anguish of a potentially long jail sentence for approximately 1 year until the above said charges were dismissed

FOURTEENTH: That the aforesaid actions of the defendants, The City, The Police Department, and their agents servants and/ or employees including but not limited to the defendants DET. EDRIAN IRIZZARY, DET ROBERT VILLANI, DET. IAN SCHEINBULUM, AND VARIOUS P.O'S HEREIN NAMED JOHN DOES, on or about the 7th of February 2013 amounted to wanton, reckless outrageous conduct.

FIFTEENTH: That by reason of the foregoing occurrence, the plaintiff, ERIC JIMENEZ was caused to sustain serious, severe and permanent injuries; was greatly humiliated and suffered great mental distress; was compelled to obtain hospital and medical care, aid and attention; was confined to his bed and home; was unable to attend to his duties and he sustained other and further expenses, all to his damage in a sum that exceeds the jurisdictional limits of all lower courts and that said conduct amounted to wanton and reckless

behavior for which plaintiff is entitled to sum that exceeds the jurisdictional limits of all lower courts for punitive damages.

**FOR A SECOND SEPARATE AND DISTINCT CAUSE OF ACTION
FOR FALSE ARREST ON BEHALF OF PLAINTIFF, ERIC JIMENEZ**

SIXTEENTH: The plaintiff, ERIC JIMINEZ, repeats, reiterates and re-alleges each and every allegation of the Complaint numbered "**FIRST**" through "**FIFTEENTH**" inclusive, with the same force and effect as if fully and at length herein set forth.

SEVENTEENTH: That on or about 7th of February 2013, the defendants, The City, and The Police Department, as well as their agents servants and/ or employees including but not limited to the defendants , DET. EDRIAN IRIZZARY, DETROBERT VILLANI, DET. IAN SCHEINBULUM, AND VARIOUS P.O'S HEREIN NAMED JOHN DOES ,were working within the scope of their employment, when without cause or provocation, they falsely arrested the plaintiff, ERIC JIMENEZ

EIGHTEENTH: That the aforesaid actions of the defendants, The City, The Police Department, and their agents servants and/ or employees including but not limited to the defendants, DET. EDRIAN IRIZZARY, DET ROBERT VILLANI, DET. IAN SCHEINBULUM, AND VARIOUS P.O'S HEREIN NAMED JOHN DOES, on February 7th 2013, amounted to wanton, reckless outrageous conduct.

NINETEENTH: That the injuries sustained by the plaintiff herein were caused, due to the actions of the defendants, The City, and The Police Department as well as their agents, servants and/or employees including but not limited to defendants, DET. EDRIAN IRIZZARY, DET ROBERT VILLANI, DET. IAN SCHEINBULUM, AND VARIOUS P.O'S HEREIN NAMED JOHN DOES, with no

actions on his part contributing in any way thereto.

TWENTIETH: That at the time of the false arrest the defendants, The City, and The Police Department as well as their agents, servants and/or employees including but not limited to defendants, DET. EDRIAN IRIZZARY, DET ROBERT VILLANI, DET. IAN SCHEINBULUM, AND VARIOUS P.O'S HEREIN NAMED JOHN DOES ,were acting within the scope of their employment.

TWENTY-FIRST: That by reason of the foregoing occurrence, the plaintiff, ERIC JIMENEZ, was caused to sustain serious, severe and permanent injuries; was compelled to obtain hospital and medical care, aid and attention; was confined to his bed and home; was unable to attend to his duties and was caused to sustain other and his sustained other and further expenses, all to his damage in a sum that exceeds the jurisdictional limits of all lower courts and that said conduct amounted to wanton and reckless behavior for which plaintiff is entitled to sum that exceeds the jurisdictional limits of all lower courts for punitive damages.

**FOR A THIRD AND SEPARATE AND DISTINCT CAUSE OF ACTION FOR
INTENTIONAL INFLICTION OF EMOTIONAL DISTRESS ON BEHALF OF
PLAINTIFF ERIC JIMENEZ**

TWENTY-SECOND: That the plaintiff, ERIC JIMENEZ reiterates and re-alleges each and every allegation of the Complaint numbered "**FIRST**" through "**TWENTY-FIRST**" inclusive, with the same force and effect as if fully and at length herein set forth.

TWENTY-THIRD: That on or about the 7th of February 2013, the defendants, The City and The Police Department as well as their agents, servants and/or

employees, including but not limited to defendants, DET. EDRIAN IRIZZARY, DETROBERT VILLANI, DET. IAN SCHEINBULUM, AND VARIOUS P.O'S HEREIN NAMED JOHN DOES, while in the scope of their employment did willfully and intentionally, inflict extreme emotional distress on the plaintiff, ERIC JIMENEZ at the situs of the arrest, the 7TH Pct as well as Central Booking, and while confined detained, and handcuffed at the 7th Pct, and Central Booking, and without any provocation on the part of said plaintiff.

TWENTY-FOURTH: That due to the wanton, reckless and malicious actions of the defendants The City, and The Police Department, as well as their agents servants and/ or employees including but not limited to the defendants, DET. EDRIAN IRIZZARY, DET. ROBERT VILLANI, DET. IAN SCHEINBULUM, AND VARIOUS P.O'S HEREIN NAMED JOHN DOES, on or about the 15th of September 2013 the plaintiff was intentionally subjected to extreme emotional distress from Other P.O.s herein Named John Does at the situs of the arrest, while being transported to the 7th Pct, while at the 7th Pct, and at Central Booking in New York County, while going for his arraignment, until he was released from the Manhattan Detention Center on February 14th 2013 and for approximately 1 months until the charges were dismissed against him on 2/10/14.

TWENTY-FIFTH: That the aforesaid actions of the defendants, The City, The Police Department, and their agents servants and/ or employees including but not limited to the defendants, DET. EDRIAN IRIZZARY, DET ROBERT VILLANI, DET. IAN SCHEINBULUM, AND VARIOUS P.O'S HEREIN NAMED JOHN DOES, on or about the 7th of February 2013 amounted to wanton, reckless outrageous conduct.

TWENTY-SIXTH: That at the time of the intentional infliction of emotional distress the defendants, The City, The Police Department, and their agents servants and/ or employees including but not limited to the defendants DET. EDRIAN IRIZZARY, DET ROBERT VILLANI, DET. IAN SCHEINBULUM, AND

VARIOUS P.O'S HEREIN NAMED JOHN DOES,were acting within the scope of their employment.

TWENTY-SEVENTH: That by reason of the foregoing occurrence, the plaintiff, ERIC JIMENEZ was caused to sustain serious, severe and permanent injuries; was compelled to obtain hospital and medical care, aid and attention; was confined to his bed and home; was unable to attend to his duties and was caused to sustain other and he sustained other and further expenses, all to his damage in a sum that exceeds the jurisdictional limits of all lower courts and that said conduct amounted to wanton and reckless behavior for which plaintiff is entitled to a sum that exceeds the jurisdictional limits of all lower courts for punitive damages.

**FOR A FOURTH AND SEPARATE AND DISTINCT CAUSE
OF ACTION FOR A VIOLATION OF HIS CIVIL RIGHTS ON
BEHALF OF PLAINTIFF ERIC JIMENEZ**

TWENTY-EIGHT: That plaintiff, ERIC JIMENEZ repeats, reiterates and re-alleges each and every allegation of the Complaint numbered "FIRST" through "TWENTY-SEVENTH" inclusive, with the same force and effect as if fully and at length herein set forth.

TWENTY-NINTH: That on or about the 7TH of February 2013, defendants The City, and The Police Department, as well as their agents servants and/ or employees including but not limited to the defendants, DET. EDRIAN IRIZZARY, DET ROBERT VILLANI, DET. IAN SCHEINBULUM, AND VARIOUS P.O'S HEREIN NAMED JOHN DOESwere working within the scope of their employment, when they deprived the plaintiff of his civil rights under the Constitution of the State of New York and the Constitution of the United States, as well as other State ordinances, statutes, codes and rules, including, 42 U.S.C. SECS. 1981, 1983, 1985, and 28. U.S.C. 1343.

THIRTIETH: That afore said actions of the defendants, The City, and The Police Department, as well as their agents servants and/ or employees including but not limited to the defendants DET. EDRIAN IRIZZARY, DET ROBERT VILLANI, DET. IAN SCHEINBULUM, AND VARIOUS P.O'S HEREIN NAMED JOHN DOES, amounted to wanton, reckless and outrageous conduct.

THIRTY-FIRST: That the injuries sustained by the plaintiff herein were caused due to the negligence of the defendants, The City, and The Police Department, as well as their agents servants and/ or employees including but not limited to the defendants DET. EDRIAN IRIZZARY, DET. ROBERT VILLANI, DET. IAN SCHEINBULUM, AND VARIOUS P.O'S HEREIN NAMED JOHN DOES, with no actions on his part contributing in any way thereto.

THIRTY-SECOND: That at the time of the violation of his civil rights under the Constitution of the State of New York and the Constitution of the United States, as well as other State ordinances, statutes, codes and rules, including, 42 U.S.C. SECS. 1981, 1983, 1985, and 28. U.S.C. 1343, the defendants, their agents, servants and/or employees were acting within the scope of their employment.

THIRTY-THIRD: That by reason of the foregoing occurrence, the plaintiff, was caused to sustain serious, severe and permanent injuries; was compelled to obtain hospital and medical care, aid and attention; was confined to his bed and home; was unable to attend to his duties and was caused to sustain other and he sustained other and further expenses, all to his damage in a sum that exceeds the jurisdictional limits of all lower courts and that said conduct amounted to wanton and reckless behavior for which plaintiff is entitled to sum

that exceeds the jurisdictional limits of all lower courts for punitive damages.

**FOR A FIFTH AND SEPARATE AND DISTINCT CAUSE OF
ACTION FOR NEGLIGENT INFLICTION OF EMOTIONAL
DISTRESS ON BEHALF OF PLAINTIFF ERIC JIMENEZ**

THIRTY-FOURTH: That plaintiff, repeats, reiterates and re-alleges each and every allegation of the Complaint numbered "**FIRST**" through "**THIRTY-THIRD**" inclusive, with the same force and effect as if fully and at length herein set forth.

THIRTY-FIFTH: That on or about , the defendants, The City and The Police Department as well as their agents, servants and/or employees, including but not limited to defendants, Other P.O.s herein named John Does, while in the scope of their employment did negligently, inflict extreme emotional distress on the plaintiff, at the situs of while being transported to the 7th Pct, while at the 7th Pct, and at Central Booking in New York County, while going for his arraignment, until he was released from Manhattan Detention Center on 2/14/13 and for approximately 1 year until the charges were dismissed against him on 2/10/14

THIRTY-SIXTH: That due to the wanton, reckless and malicious actions of the defendants The City, and The Police Department, as well as their agents servants and/ or employees including but not limited to the defendants DET. EDRIAN IRIZZARY, DET, ROBERT VILLANI, DET. IAN SCHEINBULUM, AND VARIOUS P.O'S HEREIN NAMED JOHN DOES, the plaintiff was negligently subjected the subjected to extreme emotional distress from other inmates while at the situs of while being transported to the 7th Pct, while at the 7th Pct, and at Central Booking in New York County, while going for his arraignment, until he was released from Manhattan Detention Center on 2/14/13 and for approximately 1 year until the charges were dismissed against him on 2/10/14

THIRTY-SEVENTH: That the aforesaid actions of the defendants, The City, The Police Department, and their agents servants and/ or employees including but not limited to the defendants DET. EDRIAN IRIZZARY, DET, ROBERT VILLANI, DET. IAN SCHEINBULUM, AND VARIOUS P.O'S HEREIN NAMED JOHN DOES, on February 7th 2013 amounted to wanton, reckless outrageous conduct.

THIRTY-EIGHTH: That on the 15th of September 2013 The City and The Police Department as well as their agents, servants and/or employees, including but not limited to defendants, DET. EDRIAN IRIZZARY, DET, ROBERT VILLANI, DET. IAN SCHEINBULUM, AND VARIOUS P.O'S HEREIN NAMED JOHN DOES,, were working within the scope of their employment, when they negligently caused the plaintiff to endure severe emotional distress.

THIRTY-NINTH: That the injuries sustained by the plaintiff herein were caused due to the negligence of the defendants, their agents, servants and/or employees with no actions on her part contributing in any way thereto.

FORTIETH: That the defendants, their agents, servants and/or employees actions herein amounted to wanton, reckless and outrageous conduct.

FORTY-FIRST: That at the time of the negligent infliction of emotional distress the defendants, their agents, servants and/or employees were acting within the scope of their employment.

FORTY-SECOND: That by reason of the foregoing occurrence, the plaintiff, was caused to sustain serious, severe and permanent injuries; was compelled to obtain hospital and medical care, aid and attention; was confined to his bed and home; was unable to attend to his duties and was caused to sustain other

and further expenses, all to his damage in a sum that exceeds the jurisdictional limits of all lower courts and that said conduct amounted to wanton and reckless behavior for which plaintiff is entitled to sum that exceeds the jurisdictional limits of all lower courts for punitive damages.

**FOR A SIXTH AND SEPARATE AND DISTINCT CAUSE OF ACTION
FOR MALICIOUS PROSECUTION ON BEHALF OF PLAINTIFF ERIC
JIMENEZ**

FORTY-THIRD: That plaintiff, repeats, reiterates and re-alleges each and every allegation of the Complaint numbered "**FIRST**" through "**FORTY SECOND**" inclusive, with the same force and effect as if fully and at length herein set forth.

FORTY-FOURTH: On or about the 7th of February 2013, The City and The Police Department as well as their agents, servants and/or employees, including but not limited to defendants, DET. EDRIAN IRIZZARY, DET. ROBERT VILLANI, DET. IAN SCHEINBULUM, AND VARIOUS P.O'S HEREIN NAMED JOHN DOES, individually, and severally, maliciously and without probable cause, executed and swore to accusatory instruments: charging plaintiff with the following: **PL: 220.03, 220.16, 215.40, 260.20, 221.05.**

FORTY-FIFTH: Plaintiff, ERIC JIMENEZ was thereafter compelled to appear in the Criminal Court of the City of New York, County of New York on approximately 5 separate occasions over 1 year and to defend himself against the above-described malicious, baseless, and ill founded charges of **PL: 220.03, 220.16, 215.40, 260.20, 221.05.**

FORTY-SIXTH: That approximately 1 months later the aforesaid charges were dismissed by Motion of the DA on 2/10/14 before Hon. L, Peterson, in part A of the Criminal Court of the City of New York, County of New York and State of New York.

FORTY-SEVENTH: That by reason of the foregoing, the plaintiff, ERIC JIMENEZ has been deprived of his liberty, subjected to ridicule, scorn and derision, damaged in his good name and reputation and subjected him to great humiliation, mental and physical distress. That as a result thereof the plaintiff has suffered compensatory damages having a present value that exceeds the jurisdictional limits of all lower courts that would otherwise have jurisdiction of this matter.

**FOR A SEVENTH SEPARATE AND DISTINCT
CAUSE OF ACTION FOR ASSAULT ON BEHALF
OF PLAINTIFF, ERIC JIMENEZ**

FORTY-EIGHTH: That the Plaintiff, ERIC JIMENEZ repeats, reiterates and realleges each and every allegation of the Complaint numbered "**FIRST**" through "**FORTY-SEVENTH**" inclusive, with the same force and effect as if fully and at length herein set forth

FORTY-NINTH: That on 7thg of February 2013 the defendants, their agents, servants and/or employees of the defendants including DET. EDRIAN IRIZZARY, DET, ROBERT VILLANI, DET. IAN SCHEINBULUM, AND VARIOUS P.O'S HEREIN NAMED JOHN DOES who were at the situs of the arrest did willfully and intentionally assault, strike, push, and grab, the plaintiff, ERIC JIMENEZ without any provocation on the part of said plaintiff.

FIFTIETH: That at the time of the assault, the defendants, their agents, servants and/ or employees, were acting within the scope of their employment.

FIFTY-SECOND: That by reason of the foregoing occurrence, the plaintiff, ERIC JIMENEZ was caused to sustain serious, severe and permanent injuries; was compelled to obtain hospital and medical care, aid and attention; was confined to his bed and home; was unable to attend to his duties and was caused to sustain other and he sustained other and further expenses all to his damage in a sum that exceeds the jurisdictional limits of all lower courts and that said conduct amounted to wanton and reckless behavior for which plaintiff is entitled to sum that exceeds the jurisdictional limits of all lower courts for punitive damages.

**FOR A EIGHTH AND SEPARATE AND DISTINCT ACTION
FOR EXCESSIVE FORCE, VARIOUS POS HEREIN NAMED
JOHN DOES ON BEHALF OF PLAINTIFF ERIC JIMENEZ**

FIFTY-THIRD: That plaintiff, repeats, reiterates and re-alleges each and every allegation of the Complaint numbered "**FIRST**" through "**FIFTY-SECOND**" inclusive, with the same force and effect as if fully and at length herein set forth.

FIFTY-FOURTH: That the defendant, OTHER POS HEREIN NAMED JOHN DOES, used excessive force against in violation of the 4th 14th and 8th Amendments when kicked in the front door of his mother's apartment then placed an Armored Shield with a Peep Hole and their entire body weight on the plaintiff, Eric Jimenez, who was already face down on the floor of his room and only wearing boxers and then continued to physically restrain him not only using

Handcuffs and leg irons and then drag him out of his apartment in front of his mother and 14 year old brother and then out of building and in front of the other tenants in the building.

FIFTY-FIFTH: There was no legal justification for defendants DET. EDRIAN IRIZZARY, DET, ROBERT VILLANI, DET. IAN SCHEINBULUM, AND VARIOUS P.O'S HEREIN NAMED JOHN DOES actions

FIFTY-SIXTH: Defendants, defendants DET. EDRIAN IRIZZARY, DET, ROBERT VILLANI, DET. IAN SCHEINBULUM, AND VARIOUS P.O'S HEREIN NAMED JOHN DOES actions were objectively unreasonable.

FIFTY-SEVENTH: The actions of the Defendants, DET. EDRIAN IRIZZARY, DET, ROBERT VILLANI, DET. IAN SCHEINBULUM, AND VARIOUS P.O'S HEREIN NAMED JOHN DOES amounted to deliberate indifference to the rights of the plaintiff to be free of excessive force, unreasonable seizures under the Fourth and Fourteenth Amendments to the Constitutions of the United States as well as the applicable parts of The Constitution of the State of New York.

FIFTY-EIGHTH: The actions of the DET. EDRIAN IRIZZARY, DET, ROBERT VILLANI, DET. IAN SCHEINBULUM, AND VARIOUS P.O'S HEREIN NAMED JOHN DOES amounts to unnecessary and wanton infliction of pain, and arises under the Eighth Amendment to the Constitutions of the United States and the applicable parts of The Constitution of the State of New York.

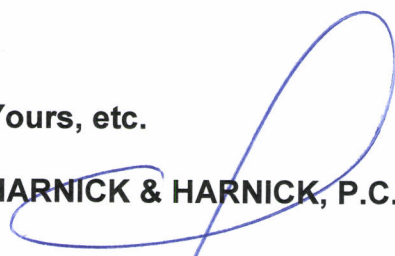
FIFTY-NINTH: That by reason of the foregoing excessive force, the plaintiff was caused to sustain serious, severe and permanent injuries; was compelled to obtain hospital and medical care, aid and attention; was confined to

his bed and home; was unable to attend to his duties and was caused to sustain other and further expenses, all to his damage in a sum that exceeds the jurisdictional limits of all lower courts and that said conduct amounted to wanton and reckless behavior for which plaintiff is entitled to sum that exceeds the jurisdictional limits of all lower courts for punitive damages.

WHEREFORE, the plaintiff demands judgment against the defendants on the First, Second, Third, Fourth, Fifth, Sixth Seventh, and Eighth Causes of Action in the sum that exceeds the jurisdictional limits of all lower courts and that said conduct amounted to wanton and reckless behavior for which plaintiff is entitled to sum that exceeds the jurisdictional limits of all lower courts for punitive damages together with the costs and disbursements of this action.

Dated: New York, New York
April 21st, 2015

Yours, etc.


HARNICK & HARNICK, P.C.

THOMAS HARNICK
Attorneys for Plaintiff
305 Broadway, Suite 602
New York, New York 10007
(212) 962-5065

VERIFICATION

STATE OF NEW YORK)

ss:

COUNTY OF NEW YORK)

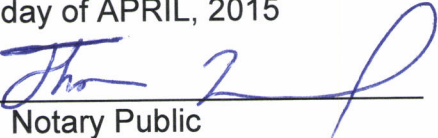
ERIC JIMENEZ, being duly sworn, deposes and says:

That deponent is the plaintiff in the within action; that deponent has read the foregoing **SUMMONS AND VERIFIED COMPLAINT**, and know the contents thereof; that the same is true to deponent's own knowledge, except as to the matters therein stated to be alleged on information and belief, and that as to those matters, deponent believe them to be true.



ERIC JIMENEZ

Sworn to before me this
22nd day of APRIL, 2015



Notary Public

**SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK**

ERIC JIMENEZ,

Plaintiff,

-against-

**THE CITY OF NEW YORK, THE POLICE DEPARTMENT OF THE
CITY OF NEW YORK, DET. EDRIAN IRIZZARY, SHIELD #6201, DET.
ROBERT VILLANI, SHIELD #767, DET. CHRISTOPHER DEDE,
SHIELD #2119, DET. IAN SCHEINBLUM, AND VARIOUS OTHER
P.O.'s HEREIN NAMED JOHN DOES',**

Defendants.

SUMMONS AND VERIFIED COMPLAINT

**HARNICK & HARNICK, P.C.
Attorneys for Plaintiff
305 Broadway, Suite 602
New York, New York 10007
(212) 962-5065**